Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1174
Claimant:	Alexander Murphy
Adjuster:	Darin Tyler

July 16, 2023
The claim was reported by the claimant after a side impact at an intersection. The driver is named on the policy, and the coverage was in force at the time of the loss.

July 19, 2023
Police attended the scene and confirmed the claimant was in the vehicle that was struck. The claimant reported neck and back pain at the scene.

August 11, 2023
I obtained the other driver's statement, which matches the claimant's description of the collision. The other driver stated that the light had turned in the claimant's favor.

September 27, 2023
Witnesses who spoke with me gave accounts consistent with the claimant's version of how the accident happened. Scene photographs were also reviewed and are in the file.

October 17, 2023
The damage to the claimant's vehicle is on the driver's side and lines up with the direction and force of the impact described. No earlier damage to the vehicle is known from our records or the repair inspection.

November 5, 2023
I found nothing suggesting the damage occurred before the coverage start date. The vehicle's history was checked and shows no prior claims on this area.

December 2, 2023
The claimant was seen at an urgent care facility the same day and was diagnosed with neck and back strain. Treatment at that stage was consistent with the kind of force involved in a side impact.

December 4, 2023
I spoke with the claimant the following week, and the account of the accident was the same as in the first report. The claimant has given the same description in every conversation since.

December 10, 2023
The claimant's treating provider requested authorization for physical therapy over several weeks. The course of care was typical for this injury, and the number of visits tapered as the claimant improved.

December 13, 2023
Medical records were requested from the prior treating provider. These show long-standing treatment for the same neck and back condition before this accident, and most of the current complaints appear to relate to that earlier condition.

January 6, 2024
I discussed the prior records with the treating provider, who agreed that the current injury is a real strain from the crash but that the ongoing symptoms are largely the pre-existing condition. The claim is being evaluated with that distinction in mind.

January 10, 2024
The claimant is not represented by an attorney and has been informed of the coverage terms and the next steps. The

file will be reviewed again once the final treatment report is received.

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Recorded Statement

Claim number:	C-1174
Statement of:	Alexander Murphy
Taken by:	Darin Tyler
Date:	May 20, 2023

Q: This is the recorded statement for claim file reference regarding the intersection collision in Baytown, Texas. Please state your full name for the record.

A: I'd rather just give you my first name for now, if that's okay.

Q: That's fine. Can you describe where you were driving when the collision happened?

A: I was heading east on the main road, going through the intersection on a green light, I'm fairly sure of that.

Q: What happened as you entered the intersection?

A: A vehicle coming from the left side came through the crossing and hit the driver's side of my car. I didn't see it until it was already there. I hit the brakes but there wasn't time.

Q: Were you able to get your car to a safe spot afterward?

A: Not right away. The impact spun me a little and I stopped partly in the lane. Someone pulled over to help and the police came out.

Q: Did you receive any medical attention?

A: I was checked at the scene and then went to an urgent care center later that day. My neck is stiff and sore, and my lower back aches when I sit too long. I've been told it's a strain.

Q: Have you been able to keep up with your normal activities since then?

A: Some things are harder. Lifting groceries hurts, and I've had to take time off from my shifts while the pain settles down.

Q: Is there anything else you'd like to add to your account?

A: Only that I'm trying to be accurate about what I saw. I'll send over the report and the urgent care paperwork when I get a chance.

Q: Thank you. This concludes the statement.